

Ranveer Singh v. Powergrid Corporation of India Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 February 2013 · WRIT - C No. - 7737 of 2013 · **Writ disposed; respondent No. 2 directed to examine the grievance and take steps in accordance with the Electricity Supply Code, 2005 within four weeks.**

HEADNOTE

On a complaint that Powergrid was erecting a transmission line over the petitioner's land without consent or permission, the Allahabad High Court disposed of the writ by directing respondent No. 2 to look into the grievance and take immediate steps in accordance with the Electricity Supply Code, 2005, within four weeks of communication of the order.

FACTUAL SUMMARY

Ranveer Singh approached the Allahabad High Court alleging that Powergrid Corporation of India Ltd. was erecting a transmission line over Khasara Plot Nos. 481 (0.4390 hectare) and 483 (1.3630 hectares) of Village Validpur, Pargana Daurala, Tehsil Sardhana, District Meerut, aggregating 1.8020 hectare, belonging to the petitioners. He contended that neither his consent nor the permission of respondent No. 2 had been obtained for drawing the line over that land.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

transmission line over private land without consent

HOLDING

Where a landowner alleges that a transmission line is being erected over his land without consent, the writ court may dispose of the petition by directing the concerned respondent to examine whether the line is required to be drawn over that land and to take immediate steps in accordance with the Electricity Supply Code, 2005, within a fixed time. ¶ 1

FLAG order invokes Electricity Supply Code, 2005 without citing a clause

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LANDOWNER'S CONSENT WAS A LEGAL PRECONDITION TO ERECTING THE TRANSMISSION LINE OVER THE PLOTS

Court directed respondent No. 2 to examine the matter if consent had not been given; did not decide the legality of the line. ¶ 1

NOT DECIDED — WHETHER THE TRANSMISSION LINE WAS REQUIRED TO BE DRAWN OVER THE PETITIONER'S LAND

¶ 1